

construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full, verified, code-compliant further responses Requests for Production of Documents No. 1, 4, 5,6,8,11-34, 36, 38, 39, 43, 51 and 53 and shall produce all responsive, non-privileged documents within their possession, custody, or control, properly identified by Bates number and request number. All that must be done within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2031.310(h): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response to a demand...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

26. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS'**

REQUESTS FOR ADMISSION, SET ONE

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant’s motion to compel further responses to 13 requests for admissions contained in set one, viz., Nos. 8, 9, 10, 19 through 24, 27, 34, 41 and 81. (set one). The motion is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to

oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full and complete responses to requests for admission Nos. 8, 9, 10, 19 through 24, 27, 34, 41 and 81. (set one) within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2033.290(d): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

**Law & Motion
Add On**

**27. 9:00 AM CASE NUMBER: N26-0600
CASE NAME: TIFFANY PANFILI VS. TARA STARR M.D. INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: TARA STARR M.D. INC.**

TENTATIVE RULING:

This is an unlawful detainer action (see CCP 1159-1179) in which the complaint alleges that Defendant failed to pay rent owing pursuant to the terms of a lease, a 3 day notice to “pay or quit” was served on Defendant and Defendant failed to pay the rental owing or vacate the premises. Defendant demurs to the Complaint based on “uncertainty” that the complaint fails to state how the amount owing was calculated, etc. And that certain allegations are untrue. A demurrer cannot be used to challenge veracity of allegations in the complaint. Defendant’s objections to the complaint are subject to proof during discovery and at trial and are not the basis for demurrer. The demurrer is **OVERRULED**. Answer shall be filed within five days from this hearing date.